

The Bengal Government Indemnity Regulation, 1822

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State of Uttar Pradesh - Act

The Bengal Government Indemnity Regulation, 1822

UTTAR PRADESH

India

The Bengal Government Indemnity Regulation, 1822

Act 11 of 1822

Published on 22 November 1822

Commenced on 22 November 1822

[This is the version of this document from 22 November 1822.]

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The Bengal Government Indemnity Regulation, 1822

(Bengal Regulation No. 11 of 1822)

[Passed by the Governor-General in Council on the 22nd November, 1822]

Short title given by Act I of 1903, Section 2.

A Regulation [* * *]

[The words 'for modifying and explaining the existing-Regs. relative to the sale of land for recovery of arrears of revenue' repealed by Act XII of 1811.]

for declaring Government not to be liable for any errors or irregularities in the proceedings of the Courts of Justice, and for making further provision for the conduct of the Revenue officers in certain cases.

1.

and 2.

[Preamble : Repeals] - Repealed by Act XIX of 1873.

3.

to 35.

[Preamble: Repeals; Public sale of lands for: Arrears of revenue] - Repealed by Act XII of 1841.

36.

[Management of estates purchased by the Government.] - Repealed by Act XIX of 1873.

37.

[Punishment of contempt] - Repealed by Act XII of 1841.

[38. The Government not liable for errors of Courts. - It is hereby declared and enacted that [the Government]

[By the Laws Local Extent Act, 1874 (Act XV of 1874), Section 7, Section 38 was declared to be in force in the whole of Agra Province (then the North-Western Provinces), except as regards the Scheduled Districts.]

is not and shall not be held liable for any error or irregularity which may have occurred, or shall occur, in any order, proceeding or decree of any Court of Judicature, whether a revenue or other officer of [the Government]

[Substituted by A.L.O. 1950 for 'the Crown' which had been substituted by the A.L.O. 1937 for 'Government'.]

may or may not have been, or shall or shall not be, employed in giving effect to the order, proceeding or decree deemed to be erroneous or irregular; nor shall any officer of [the Government]

[Substituted by the A.L.O. 1950 for 'the Crown' which had been substituted by the A.L.O. 1937 for 'Government'.]

be held liable for anything done or suffered in conformity with an order, proceeding or decree of a Court as aforesaid; and if any person or persons shall sue [the Government]

[Substituted by the A.L.O. 1950 for 'the Crown' which had been substituted by the A.L.O. 1937 for 'Government'.]

or any officer of [the Government]

[Substituted by the A.L.O. 1950 for 'the Crown' which had been Substituted by the A.L.O. 1937 for 'Government'.]

, for anything done or suffered under an order, proceeding or decree of Court as aforesaid, such person or persons shall be non-suited, with costs.

The same principle is and shall be held applicable to all orders, proceeding or decree made, held or passed by any Public officer, in virtue of power vested in him for the Judicial cognizance of any pleas, suits, complaints or in formations whatsoever, unless otherwise specially provided.]

39.

[Saving of Bengal Regulation I of 1841.] - Repealed by Act XII of 1841.

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